

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Valuation (Scotland) Act, 1854	17 & 18 Vict. c. 91.
Lands Valuation (Scotland) Act, 1857	20 & 21 Vict. c. 58.
Valuation of Lands (Scotland) Amendment Act, 1879	42 & 43 Vict. c. 42.
Post Office Act, 1908	8 Edw. 7. c. 48.
Rating (Scotland) Act, 1926	16 & 17 Geo. 5. c. 47.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Gas Act, 1948	11 & 12 Geo. 6. c. 67.

CHAPTER 48

Costs in Criminal Cases Act, 1952

ARRANGEMENT OF SECTIONS

Section

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12. Regulations.
13. Person not tried after committal.
14. Application to committal for sentence, and appeals under Vagrancy Act. Application to other appeals to quarter sessions excluded.
15. Application to cases tried in Queen's Bench Division.
16. Savings.
17. Interpretation.
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19. Citation, extent and commencement.

SCHEDULE—Enactments repealed.

An Act to consolidate certain enactments relating to costs in criminal cases with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949. [1st August 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Costs awarded
by assizes
or quarter
sessions out of
local funds.

1.—(1) Subject to the provisions of this section, a court of assize or quarter sessions before which any person is prosecuted or tried on indictment or inquisition—

(a) may order the payment out of local funds of the costs of the prosecution ;

(b) may, if the accused is acquitted, order the payment out of local funds of the costs of the defence.

(2) The costs payable out of local funds under the preceding subsection shall be such sums as appear to the court reasonably sufficient to compensate the prosecutor, or as the case may be the accused, for the expenses properly incurred by him in carrying on the prosecution or the defence, and to compensate any witness for the prosecution, or as the case may be for the defence, for the expense, trouble or loss of time properly incurred in or incidental to his attendance and giving evidence.

(3) Notwithstanding that the court makes no order under subsection (1) of this section for the payment out of local funds of the costs of the defence, it may order the payment out of those funds of such sums as appear to the court reasonably sufficient to compensate any witness for the defence for the expense, trouble or loss of time properly incurred in or incidental to his attendance and giving evidence.

(4) Unless the court otherwise directs, no sum shall be payable in pursuance of an order made under this section to or in respect of any witness for the prosecution or defence who is a witness to character only.

(5) The amount of costs ordered to be paid under this section shall be ascertained as soon as practicable by the proper officer of the court.

(6) In this section the expression " witness " means a person properly attending to give evidence, whether or not he gives evidence ; and a person called to give evidence at the instance of the court may, whether or not he is a witness for the defence, be made the subject of an order under subsection (3) of this section.

2.—(1) A court of assize or quarter sessions before which any person is convicted may, if it thinks fit, order him to pay the whole or any part of the costs incurred in or about the prosecution and conviction, including any proceedings before the examining justices.

Costs awarded by assizes or quarter sessions as between parties.

(2) Where any person is acquitted on indictment, then, if—

- (a) he has not been committed to or detained in custody or bound by recognizance to answer the indictment; or
- (b) the indictment is for an offence under the Merchandise Marks Acts, 1887 to 1938; or
- (c) the indictment is by a private prosecutor for the publication of a defamatory libel or for any corrupt practice within the meaning of the Representation of the People Act, 1949,

the court of assize or quarter sessions before which he is acquitted may order the prosecutor to pay the whole or any part of the costs incurred in or about the defence, including any proceedings before the examining justices.

(3) Costs payable under this section shall be taxed by the proper officer of the court.

3.—(1) The Court of Criminal Appeal may, when it dismisses an appeal, or application for leave to appeal, order the appellant to pay the whole or any part of the costs of the appeal or application, including the cost of any transcript of the shorthand notes of the proceedings at the trial made in accordance with a direction given by the registrar under section sixteen of the Criminal Appeal Act, 1907.

Costs awarded by Court of Criminal Appeal.

(2) The Court of Criminal Appeal may, when it allows an appeal against a conviction, order the payment out of local funds of such sums as appear to the Court reasonably sufficient to compensate the appellant for any expenses properly incurred in the prosecution of his appeal, including any proceedings preliminary or incidental thereto, or in carrying on his defence.

The amount of costs that the Court has ordered to be paid under this subsection shall as soon as practicable be ascertained by the proper officer of the Court.

(3) Whether or not the Court makes an order under the preceding provisions of this section, there shall be defrayed out of local funds, up to an amount allowed by the Court—

- (a) the fees of any counsel, and the expenses and fees of any solicitor, assigned to the appellant under section ten of the Criminal Appeal Act, 1907;

- (b) the expenses of any witness attending on the order of the Court, or examined in any proceedings incidental to an appeal in the Court ;
- (c) the expenses of the appearance of the appellant on the hearing of his appeal or on any proceedings preliminary or incidental to the appeal ;
- (d) the expenses of and incidental to any examination of witnesses conducted by a person appointed by the Court for the purpose, or of any reference of a question to a special commissioner appointed by the Court, and
- (e) the expenses of any person appointed as assessor to the Court.

(4) Except as provided in this and the next following section, no costs shall be allowed on the hearing or determination of an appeal, or of any proceedings preliminary or incidental to an appeal, under the Criminal Appeal Act, 1907.

Costs awarded
by the House
of Lords.

4.—(1) Where an appeal to the House of Lords brought under subsection (6) of section one of the Criminal Appeal Act, 1907, is determined in favour of the accused, the House of Lords may, if it thinks fit, order the payment out of local funds of such sums as appear to it reasonably sufficient to compensate him for any expenses properly incurred by him in the appeal to the House of Lords or in the prosecution of his appeal to the Court of Criminal Appeal or in carrying on his defence.

(2) The amount of any costs ordered to be paid under this section shall be ascertained by such officer or officers, and in such manner, as may be prescribed by order of the House of Lords.

Costs awarded
by magistrates'
courts out of
local funds.

5.—(1) A magistrates' court dealing summarily with an indictable offence, or inquiring into any offence as examining justices, may, subject to the provisions of this section, order the payment out of local funds of the costs of the prosecution.

(2) A magistrates' court dealing summarily with an indictable offence and dismissing the information, or inquiring into any offence as examining justices and determining not to commit the accused for trial, may, subject to the provisions of this section, order the payment out of local funds of the costs of the defence.

(3) The costs payable out of local funds under the preceding provisions of this section shall be such sums as appear to the court reasonably sufficient to compensate the prosecutor, or as the case may be the accused, for the expenses properly incurred by him in carrying on the prosecution or the defence, and to compensate any witness for the prosecution, or as the case may

be for the defence. for the expense, trouble or loss of time properly incurred in or incidental to his attendance and giving evidence.

(4) Notwithstanding that the court makes no order under subsection (2) of this section for the payment out of local funds of the costs of the defence, it may order the payment out of those funds of such sums as appear to the court reasonably sufficient to compensate any witness for the defence for the expense, trouble or loss of time properly incurred in or incidental to his attendance and giving evidence.

(5) The amount of costs ordered to be paid under this section shall be ascertained as soon as practicable by the proper officer of the court.

(6) In this section the expression "witness" means a person properly attending to give evidence, whether or not he gives evidence; and a person called to give evidence at the instance of the court may, whether or not he is a witness for the defence, be made the subject of an order under subsection (4) of this section.

6.—(1) On the summary trial of an information a magistrates' court shall have power to make such order as to costs—

Costs awarded
by magistrates'
courts as
between
parties.

- (a) on conviction, to be paid by the accused to the prosecutor;
- (b) on dismissal of the information, to be paid by the prosecutor to the accused,

as it thinks just and reasonable:

Provided that—

- (i) where under the conviction the court orders payment of any sum as a fine, penalty, forfeiture or compensation, and the sum so ordered to be paid does not exceed five shillings, the court shall not order the accused to pay any costs under this subsection unless in any particular case it thinks fit to do so;
- (ii) where the accused is under seventeen years old, the amount of the costs ordered to be paid by the accused himself under this subsection shall not exceed the amount of any fine ordered to be so paid.

(2) A court shall specify in the conviction, or as the case may be the order of dismissal, the amount of any costs that it orders to be paid under the preceding subsection.

(3) Where examining justices determine not to commit the accused for trial on the ground that the evidence is not sufficient to put him upon his trial, and are of opinion that the charge was not made in good faith, they may order the prosecutor to pay the whole or any part of the costs incurred in or about the defence.

(4) If the amount ordered to be paid under the last preceding subsection exceeds twenty-five pounds, the prosecutor may appeal to a court of quarter sessions ; and no proceedings shall be taken upon the order until the time allowed for giving notice of appeal has elapsed, or, if within that time notice of appeal is given, until the appeal is determined or ceases to be prosecuted.

Meaning of
payment out
of local funds.

7.—(1) Costs payable out of local funds under this Act shall be paid—

(a) in the case of offences committed in an administrative county, out of the county fund ;

(b) in the case of offences committed in a county borough, out of the general rate fund of the county borough.

(2) For the purposes of the preceding subsection, offences committed within Admiralty jurisdiction shall be deemed to have been committed in the place where the accused is prosecuted or tried, or, where the accused is tried at the Central Criminal Court, in the County of London.

(3) Costs paid out of the fund of any county or county borough under the last preceding subsection shall be repaid out of moneys provided by Parliament.

(4) Where a person is, in pursuance of subsection (1) or subsection (2) of section eleven of the Criminal Justice Act, 1925, indicted or tried for any offence before a court of assize or quarter sessions before which, apart from that subsection, he could not have been indicted or tried for that offence, the offence shall for the purposes of subsection (1) of this section be deemed to have been committed in the county or borough for which the examining justices acted.

(5) Where a magistrates' court—

(a) inquiring into an offence as examining justices does not commit the accused for trial ; or

(b) tries summarily an indictable offence,

and the offence was committed outside the county or borough for which the court is acting, the offence shall nevertheless for the purposes of subsection (1) of this section be deemed to have been committed in that county or borough.

(6) In this section any reference to an offence shall be construed as including a reference to an alleged offence, and any reference to an offence committed in any county or borough shall be construed as including a reference to an offence alleged to have been committed there.

8.—(1) As soon as the amount due to any person as costs ordered by a court of assize or quarter sessions, or ordered or allowed by the Court of Criminal Appeal, to be paid out of local funds has been ascertained, the proper officer shall make out and deliver to that person, or to any person appearing to the proper officer to be acting on behalf of that person, an order on the treasurer of the county or borough out of whose funds costs are payable under this Act for the payment of that amount.

Payment of costs ordered to be paid out of local funds by assizes or quarter sessions and on appeal therefrom.

(2) As soon as the amount due to any person as costs ordered by the House of Lords to be paid out of local funds has been ascertained, such officer or officers as may be prescribed by order of the House of Lords may, in such manner as may be so prescribed, make an order on the treasurer of the county or borough out of whose funds costs are payable under this Act for the payment of that amount.

9.—(1) As soon as the amount due to any person as costs ordered by a magistrates' court to be paid out of local funds has been ascertained, the proper officer shall—

Payment of costs ordered to be paid out of local funds by magistrates court.

(a) so far as the amount is due for travelling or personal expenses in respect of that person's attendance, pay to him the amount due forthwith; and

(b) so far as the amount is not due for such expenses, send a certificate of the amount to the proper officer of the court to which the defendant is committed, or, if there is no committal, to the clerk of the peace of the county or borough for which the magistrates' court acted.

In this subsection the reference to the clerk of the peace for the borough for which the magistrates' court acted shall, if the borough has no separate court of quarter sessions, be construed as a reference to the clerk of the peace for the county in which the borough is situated.

(2) A certificate sent under this section shall, if sent to the proper officer of the court to which the defendant is committed, be laid before that court and, if sent to the clerk of the peace, be laid before the next court of quarter sessions; and in either case the court shall cause an order to be made on the treasurer of the county or borough out of whose funds the amount is payable for the payment of the amount certified, or any less amount that the court considers should have been allowed under this Act.

(3) The proper officer of the court to which a defendant is committed shall, when practicable, include the amount payable as costs certified under this section in any order for payment of costs made by that court.

**Enforcement
of costs
payable
by party.**

10.—(1) Where a court of assize or quarter sessions orders the payment of costs by the accused or the prosecutor under this Act, the payment shall be enforceable in the same manner as an order for payment of costs made by the High Court in a civil case or as a sum adjudged summarily to be paid as a civil debt, and, if the person liable to pay is the person convicted, out of any money taken from him on arrest so far as the court directs.

(2) Where the Court of Criminal Appeal orders the payment of costs by the appellant under this Act, the payment shall be enforceable in the same manner as an order for payment of costs made by the High Court in a civil case.

(3) Where a magistrates' court orders the payment of costs by the accused or the prosecutor under this Act, then—

(a) payment of costs by the accused shall be enforceable as a sum adjudged to be paid by the conviction ;

(b) payment of costs by the prosecutor shall be enforceable as a sum adjudged summarily to be paid as a civil debt.

(4) Where a court of assize or quarter sessions or a magistrates' court orders the payment of costs by the accused or the prosecutor and also orders the payment of costs out of local funds, the costs, so far as they are payable under both orders, shall be primarily payable out of local funds ; and the court shall give notice to the council of the county or borough out of whose funds the costs are payable of the order for the payment of costs by the accused or the prosecutor.

(5) To the extent that any costs are primarily payable out of local funds under this Act and have been paid out of those funds, payment of the costs shall be enforceable under this section by the council of the county or borough out of whose funds they have been paid ; but, except as aforesaid, payment of costs shall be enforceable under this section by the person to whom they are ordered to be paid :

Provided that this subsection shall not apply where the payment of the costs is enforceable under this section as a sum adjudged to be paid by the conviction of a magistrates' court.

**Duty of
treasurer of
a county or
county
borough to pay
costs ordered
to be paid out
of local funds.**

11.—(1) The treasurer of a county or county borough on whom an order is made for the payment of any sum on account of costs under this Act shall, upon sight of the order, pay out of the county fund or, as the case may be, the general rate fund of the borough, to the person named in the order, or his duly authorised agent, the sum specified in the order.

(2) Where the proper officer of a magistrates' court has, under paragraph (a) of subsection (1) of section nine of this Act, paid to any person the amount due to him for travelling or personal expenses, the treasurer of the county or county borough out of

whose funds costs are payable under this Act shall repay to the proper officer the amount paid by that officer under the said paragraph.

(3) The council of every county and county borough shall cause their treasurer, or some other person on his behalf, to attend at every court of assize or quarter sessions at which any offence in respect of which an order can be made under this Act on the treasurer is to be tried for the purpose of making payments in pursuance of any orders so made, and to remain in attendance for that purpose during the sitting of the court, or until such hour as the court shall direct.

12. The Secretary of State may by statutory instrument make Regulations. regulations generally for carrying this Act into effect and in particular may by regulations so made prescribe—

- (a) the rates or scales of payment of any costs payable out of local funds under this Act and the conditions under which such costs may be allowed ;
- (b) the manner in which an officer of the court making a payment to any person in respect of his attendance to give evidence is to be repaid out of local funds ;
- (c) the form of orders, certificates and notices under this Act, and the giving of information when certificates are sent under this Act by the officer of any magistrates' court ;

and any provision in this Act enabling any sum to be paid out of local funds shall have effect subject to the regulations.

13. Where a person committed for trial is not ultimately tried, the court to which he is committed shall have the same power to order payment of costs under this Act as if the accused had been tried and acquitted. Person not tried after committal.

14.—(1) This Act shall apply where a person is committed by a magistrates' court to quarter sessions, or the appeal committee of quarter sessions, with a view to his being sentenced to Borstal training under section twenty of the Criminal Justice Act, 1948, or with a view to his being sentenced for an indictable offence under section twenty-nine of that Act, as it applies where a person is convicted before a court of quarter sessions. Application to committal for sentence, and appeals under Vagrancy Act. Application to other appeals to quarter sessions excluded.

(2) This Act shall apply to a person committed by a magistrates' court as an incorrigible rogue under the Vagrancy Act, 1824, as if he were committed for trial before a court of quarter sessions and as if the committing court were examining justices.

(3) This Act shall apply to an appeal to quarter sessions under the Vagrancy Act, 1824, as if the hearing of the appeal were a trial on indictment and as if the magistrates' court from which the appeal is brought were examining justices.

(4) Except as aforesaid, this Act shall not apply to the hearing of an appeal by a court of quarter sessions.

Application
to cases tried
in Queen's
Bench
Division.

15.—(1) On the trial at bar in the Queen's Bench Division of the High Court of an indictment or inquisition, the Court shall have the powers of a court of assize under section two of this Act to order the offender or the prosecutor to pay costs.

(2) On the trial in the High Court of an information filed *ex officio* by the Attorney General, the Court shall have the powers of a court of assize under section two of this Act to order the offender to pay costs.

(3) Sections two and ten of this Act shall apply to costs awarded by the High Court under this section as they apply to costs awarded by a court of assize.

Savings.

16.—(1) Sections one and five of this Act shall have effect subject to the provisions of section three of the Poor Prisoners' Defence Act, 1930, and, when the several provisions of Part II of the Legal Aid and Advice Act, 1949, come into force, to those provisions.

(2) Nothing in this Act shall affect the provision in any enactment for the payment of the costs of the prosecution or defence of any offence out of any assets, money or fund other than local funds, or by any person other than the prosecutor or defendant.

(3) The preceding provisions of this Act shall not apply to an offence in relation to the non-repair or obstruction of a highway, public bridge or navigable river; and costs in any such case may be allowed as in civil proceedings as if the prosecutor or defendant were the plaintiff or defendant in any such proceedings.

Interpretation.

17.—(1) In this Act, except so far as the context otherwise requires, the following expressions have the following meanings :—

“Magistrates' court” means a court of summary jurisdiction or examining justices, and includes a single examining justice;

“Prosecutor” includes any person who appears to the court to be a person at whose instance the prosecution has been instituted, or under whose conduct the prosecution is at any time carried on.

(2) References in this Act to costs paid or ordered to be paid out of local funds under the Act shall be construed as including references to any sums so paid or ordered to be paid as compensation to or expenses of a witness or other person or as counsel's or solicitor's fees.

(3) In this Act the expression "indictable offence" means an offence—

(a) which if committed by an adult is punishable only on conviction on indictment, or is punishable only on such conviction unless the accused consents to summary trial; or

(b) which by virtue of any enactment is punishable either on summary conviction or on conviction on indictment and which a magistrates' court has begun, in accordance with subsection (1) of section twenty-eight of the Criminal Justice Act, 1948, to inquire into as if it were punishable on conviction on indictment only.

(4) References in this Act to an information shall, in relation to any enactment whereby an offence may be prosecuted on complaint, be construed as including a reference to a complaint.

(5) The costs of carrying on the defence that may be awarded to any person under subsection (2) of section one, subsection (2) of section three, or section four, of this Act shall be the costs of carrying on the defence before the court of assize or quarter sessions, before the examining justices who committed him for trial and before any other court of assize or quarter sessions before which proceedings for the offence in respect of which he was committed were begun but not concluded.

(6) References in this Act to an appeal to the Court of Criminal Appeal shall be construed as including references to proceedings under the Crown Cases Act, 1848.

18.—(1) The enactments specified in the Schedule to this Act are repealed to the extent specified in the third column of the Schedule. Repeal and consequential provisions.

(2) Nothing in this repeal shall affect any regulation, rule or order made, or certificate issued, or anything done, under any enactment repealed by this Act; but any such regulation, rule, order, certificate or thing shall, so far as it is in force at the commencement of this Act, continue in force, and so far as it could have been made, issued or done under the corresponding provision of this Act, have effect as if it had been made, issued or done under that corresponding provision.

In this subsection references to a regulation made under any enactment repealed by this Act shall be construed as including references to any scales of payment having effect as if contained in such a regulation.

(3) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act; and, without prejudice to the generality of this

provision, references in any enactment to the payment of expenses in the case of an indictment for felony, or in cases of felony, or in case of a misdemeanour under the Criminal Law Act, 1826, or to costs payable out of local funds under the Costs in Criminal Cases Act, 1908, shall be construed as references to costs payable out of local funds under this Act.

(4) The mention of particular matters in this section shall not be taken to affect the general application to this Act of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

Citation,
extent,
and com-
mencement.

19.—(1) This Act may be cited as the Costs in Criminal Cases Act, 1952.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force on the first day of January, nineteen hundred and fifty-three.

Section 18.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Vict. c. 71.	The Metropolitan Police Courts Act, 1839.	Section thirty-one, so far as it relates to criminal cases.
11 & 12 Vict. c. 43.	The Summary Jurisdiction Act, 1848.	In section sixteen, the words from "with or without costs" onwards so far as they relate to criminal cases. In section eighteen, the words "of summary conviction or", the words "conviction or" in every subsequent place where they occur, the words "convicting or", and the words "prosecutor or" and "respectively" in both places where they respectively occur. In section twenty-four, the words "conviction or" in the last place where they occur and the words "prosecutor or". In section twenty-six, the words "prosecutor or" wherever they occur.

Session and Chapter	Short Title	Extent of Repeal
42 & 43 Vict. c. 49.	The Summary Jurisdiction Act, 1879.	In section eight the words from "except so far as the court" to "any costs and". Section twenty-eight.
62 & 63 Vict. c. 35.	The Inebriates Act, 1899.	Section one.
7 Edw. 7. c. 23.	The Criminal Appeal Act, 1907.	Section thirteen.
8 Edw. 7. c. 15.	The Costs in Criminal Cases Act, 1908.	The whole Act.
15 & 16 Geo. 5. c. 86.	The Criminal Justice Act, 1925.	In section eleven, subsections (1) and (2) so far as they relate to costs.
23 & 24 Geo. 5. c. 12.	The Children and Young Persons Act, 1933.	In section fifty-nine, subsection (2).
23 & 24 Geo. 5. c. 36.	The Administration of Justice (Miscellaneous Provisions) Act, 1933.	In the Second Schedule, paragraph 3.
11 & 12 Geo. 6. c. 58.	The Criminal Justice Act, 1948.	In section twenty, paragraph (c) of subsection (5). In section twenty-nine, paragraph (c) of subsection (3). In section thirty-eight, subsection (5). Section forty-four. The Ninth Schedule so far as it amends section thirteen of the Criminal Appeal Act, 1907, and the Costs in Criminal Cases Act, 1908.
12, 13 & 14 Geo. 6. c. 68.	The Representation of the People Act, 1949.	In section one hundred and fifty, subsections (1) to (4).

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Vagrancy Act, 1824	5 Geo. 4. c. 83.
Criminal Law Act, 1826	7 Geo. 4. c. 64.
Crown Cases Act, 1848	11 & 12 Vict. c. 78.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Criminal Appeal Act, 1907	7 Edw. 7. c. 23.
Costs in Criminal Cases Act, 1908	8 Edw. 7. c. 15.
Criminal Justice Act, 1925	15 & 16 Geo. 5. c. 86.
Poor Prisoners' Defence Act, 1930	20 & 21 Geo. 5. c. 32.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Legal Aid and Advice Act, 1949	12, 13 & 14 Geo. 6. c. 51.
Representation of the People Act, 1949	12, 13 & 14 Geo. 6. c. 68.